

Right to Information Act, 2005

Authority: Ministry of Personnel, Public Grievances and Pensions, Government of India

Year: 2005

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Section 6. Request for obtaining information

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(1) A person, who desires to obtain any information under this Act, shall make a request in writing or through electronic means in English or Hindi or in the official language of the area in which the application is being made, accompanying such fee as may be prescribed, to the Central Public Information Officer (CPIO) or State Public Information Officer (SPIO) of the concerned public authority.

(2) An applicant making request for information shall not be required to give any reason for requesting the information or any other personal details except those that may be necessary for contacting him.

Section 7. Disposal of request and 30-day time limit

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(1) The Central Public Information Officer or State Public Information Officer on receipt of a request under section 6 shall, as expeditiously as possible, and in any case within thirty days of the receipt of the request, either provide the information on payment of such fee as may be prescribed or reject the request for any of the reasons specified in sections 8 and 9: Provided that where the information sought for concerns the life or liberty of a person, the same shall be provided within forty-eight hours of the receipt of the request.

(6) If the Public Information Officer fails to give decision within thirty days, the information shall be provided free of charge.

Section 8. Exemption from disclosure of information

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(1) Notwithstanding anything contained in this Act, there shall be no obligation to give any citizen:

- (a) information, disclosure of which would prejudicially affect the sovereignty and integrity of India, security of the State, or relations with foreign State;
- (b) information expressly forbidden to be published by any court of law or tribunal;
- (d) commercial confidence, trade secrets or intellectual property;
- (e) information available to a person in his fiduciary relationship;
- (g) information which would endanger the life or physical safety of any person;
- (j) information which relates to personal information the disclosure of which has no relationship to any public activity or interest, or which would cause unwarranted invasion of the privacy of the individual.

Section 19. First Appeal and Second Appeal

Section 19. Appeals.

(1) Any person who, does not receive a decision within thirty days, or is aggrieved by a decision of the Central Public Information Officer or State Public Information Officer, may within thirty days from the expiry of such period or from the receipt of such a decision prefer a First Appeal to such officer who is senior in rank to the Public Information Officer (First Appellate Authority).

(3) A Second Appeal against the decision of the First Appellate Authority shall lie within ninety days from the date on which the decision should have been made or was actually received, with the Central Information Commission (CIC) or State Information Commission (SIC).

Section 20. Penalties on Public Information Officers

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(1) Where the Central Information Commission or State Information Commission at the time of deciding any complaint or appeal is of the opinion that the Public Information Officer has, without any reasonable cause, refused to receive an application or has not furnished information within the time specified under section 7 or malafidely denied the request, it shall impose a penalty of two hundred and fifty rupees each day till application is received or information is furnished, so however, the total amount of such penalty shall not exceed twenty-five thousand rupees:

Provided that the Public Information Officer shall be given a reasonable opportunity of being heard before any penalty is imposed.